Terms and conditions

FAM BY FAMILIARIZE · EFFECTIVE 21 OCTOBER 2026

Welcome to FAM. These terms and conditions (the "Terms") are an agreement between you and Familiarize ("FAM", "we", "us" or "our"). They cover FAM's apps, its website, its share links and everything you can do with them (the "Service"). When you create an account you tick a box to agree to these Terms and the privacy policy; listening without an account means agreeing to them too. If you don't agree, please don't use FAM.

> **Please read section 22.** Except in small claims court, disputes between you and FAM are settled by binding, individual arbitration, and you give up the right to a jury trial and to take part in a class action. You can opt out within 30 days of agreeing. If you live in the European Economic Area, the United Kingdom or Switzerland, section 22 does not apply to you.

The short version

- FAM's episodes are written by AI and read by a synthetic voice. They can be wrong. Check anything that matters, and never use an episode for medical, legal, financial, betting or safety decisions.
- Episodes are shared: a question you ask can become an episode other listeners play, without your name unless you choose to show it.
- You keep what you post. You let FAM store it, show it and play it to the people you share it with.
- No harassment, hate, sexual content involving minors, violence, spam, scams or impersonation. Report anything; block anyone.
- Don't scrape, copy, resell or rebroadcast FAM, or try to get around its limits, safety checks or blocks.
- You can delete your account at any time in Settings.

Contents

1. The Service
2. Who can use FAM
3. Your account
4. Episodes and AI
5. Scores, prices, forecasts and weather
6. What you ask and attach
7. What you post
8. What belongs to FAM

9. Community rules
10. Using FAM fairly
11. Reporting, blocking and enforcement
12. Messages, sharing and other people
13. Copyright and other rights
14. Sources and other companies
15. Plans, limits and payments
16. Notifications and messages from us
17. The app and its software
18. Ending this agreement
19. No warranty
20. Limits on our liability
21. Covering us for your actions
22. Disputes and arbitration
23. Apple, Google and app stores
24. Changes to these Terms
25. General terms
26. Contact

1. The Service

FAM turns what you ask about and what you follow into short audio stories ("episodes"), and lets you share them, comment on them, save them, gather them into mixes and talk about them with other people. Among other things, the Service includes searchFAM (ask a question, by typing or by voice), myFAM and DailyFAM (episodes and named mixes chosen for you), Explore (episodes other listeners asked for), vibes, comments, messages, group chats, profiles and share links.

FAM is always changing. We may add, change, limit or remove any part of it, including features, plans, voices and the episodes on offer, and we may try new things with some listeners before others. Features marked as previews or tests may be less reliable and may be withdrawn. Episodes are kept only for a limited time (the privacy policy says how long), so an episode you played before may not be there later unless you saved it. We are not obliged to keep any particular episode, source or feature available. If a change takes away something important to you, we'll try to tell you first unless we have to move quickly for safety, security or legal reasons.

The Service may be interrupted for maintenance, updates or problems outside our control, and some features depend on companies we don't control (see section 14).

2. Who can use FAM

- You must be at least 13, or older if your country requires it for you to agree to these Terms yourself.
- If you are under 18, or under the age of majority where you live, you need a parent's or guardian's permission. They agree to these Terms for you and are responsible for your use of FAM. Please read them together.

- You must not be barred from using the Service under the laws that apply to you, including US sanctions and export laws (section 25).
- You must not have had a FAM account removed by us, unless we have told you that you may come back.
- You must not be a registered or convicted sex offender.
- If you use FAM for a company, school or other organisation, you confirm you are allowed to agree to these Terms for it, and "you" includes it.

3. Your account

You can listen to some of FAM without an account. Keeping things, posting, following and messaging need one.

- **Be accurate.** Give true information when you sign up and keep it up to date. You don't have to use your real name, but you may not pretend to be someone else or something you aren't.
- **One person, one account.** Your account is for you alone. Don't share it, sell it, rent it, lend it or transfer it, or let anyone else sign in to it, and don't create an account for someone else without their permission.
- **Keep it safe.** Keep your password secret and don't reuse it elsewhere. You are responsible for everything that happens on your account. If you think someone else has used it, change your password and tell us straight away.
- **Handles.** Your @handle is not your property. We may change or reclaim one that impersonates someone, infringes someone's rights, misleads people or breaks these Terms.
- **Waitlist and invitations.** While FAM is invite-only, joining the waitlist does not promise you access, a place in line or any date. Places earned by inviting people only count for genuine invitations; we may remove places gained with fake accounts or other tricks.
- **Inactive accounts.** We may close an account that has not been used for more than a year and has no paid plan. We'll email you first if we have an address.

4. Episodes and AI

Please understand how episodes are made before you rely on one:

- **They are written by AI.** FAM's AI provider writes each episode from sources FAM finds on the web and from live data services, and a synthetic voice reads it aloud. The sources

are shown on the player. No person checks an episode before you hear it.

- **They can be wrong.** AI can misread a source, mix up people, places, dates or numbers, rely on a source that is itself wrong or out of date, leave out something important, or state something no source supports. Episodes can also be incomplete, biased or offensive. Check anything that matters against the original sources.
- **They are not professional advice.** Nothing in FAM is medical, mental health, legal, financial, investment, tax, insurance or safety advice, or a substitute for a qualified professional. If you think you may have an emergency, call your local emergency number.
- **They are not about you.** Don't use an episode about a person to make a decision that could have a legal or significant effect on them, such as about their employment, housing, credit, insurance, education or legal position.
- **They are not anyone's views.** An episode does not represent the views of FAM, of the people who work on it, or of any person or organisation it mentions. Naming a person, team, product or company does not mean they endorse or are connected with FAM.
- **The voice is synthetic.** FAM's voices are generated. They do not belong to, and are not meant to sound like, any real person, and the way a voice says a name is FAM's attempt, not the person's own.
- **Episodes are shared.** Other listeners may hear the same or a very similar episode when they ask something similar, and an episode one listener asked for may be offered to others in Explore, Trending searches and recommendations.
- **Don't pass them off.** If you share an episode or its words, don't present it as written or spoken by a person.

5. Scores, prices, forecasts and weather

Some episodes include live facts from data services: sports scores and schedules, market prices, prediction-market forecasts and weather.

- These may be delayed, incomplete or wrong, and may change after you hear them. Don't rely on them for betting, trading or investing.
- A **forecast** is what a prediction market's traders expected at one moment. It is not a prediction by FAM, not a statement of what will happen, and not an encouragement to bet or trade.
- A **market price** is information, not a recommendation to buy, sell or hold anything.
- **Weather** is a forecast, not a promise. Never use FAM for weather emergencies or warnings; follow your local authorities and official warning services.

6. What you ask and attach

- **Your questions.** What you type or say in a search or Go Deeper, and anything you attach, is your "input". FAM asks before sending your input to its AI provider and search providers, and you can change your answer in Settings. The privacy policy names them and says what they receive.
- **Your rights to it.** Only attach files, pictures and links you have the right to use, and don't put other people's private information (such as their address, phone number, health or finances) into a question or an attachment without their permission.
- **What becomes shared.** You let FAM use your input to make an episode, and to offer that episode, its title and the question it answers to other listeners (for example in Explore and Trending searches). Your name is shown only if you turn on "Show my name on episodes I searched". Questions that look personal, anything with an attachment and anything you ask in Private search are never offered to other people.
- **Voice.** If you search by voice, your device's speech recognition turns what you say into words before FAM sees them. If you turn on the "hey FAM" wake word, FAM keeps the microphone open to listen for it; it is off until you turn it on, and you can turn it off in Settings.
- **Corrections.** FAM may correct the spelling of what you ask before sending it, and an episode's title may describe what it turned out to be about rather than your exact words.

7. What you post

"Your content" means anything you post, send, caption, upload or create on FAM that isn't an episode: your name, @handle, photo and profile; comments, replies and messages; vibes and their captions; mixes, their names and covers; and feedback and reports.

- **It's yours.** You keep whatever rights you have in your content.
- **It's your responsibility.** You confirm that you have every right needed to post it, and that posting it, and our use of it under these Terms, does not break the law or anyone's rights.
- **The permission you give FAM.** So that we can run FAM, you give us a worldwide, non-exclusive, royalty-free, transferable licence, which we may pass to the companies that help us run FAM, to host, store, copy, reproduce, adapt (for example to crop, resize, transcode or translate), display, perform, distribute and otherwise use your content, consistent with your privacy settings, to operate, provide, improve, protect and promote the Service.

- **The permission you give other people.** Each person you share your content with may see, play and share it, but only through FAM's own features (such as a share link or sharing to their story).
- **When it ends.** These licences end when your content is deleted from FAM, except where others have already shared it through FAM and not deleted it, for copies in backups kept for a limited time, and where we must keep it for safety or legal reasons.
- **Your name and picture.** You let us show your name, @handle and picture beside things you do on FAM that others may see, such as your vibes, comments, follows, public mixes and, if you choose, episodes you searched, without paying you.
- **Moral rights.** As far as the law allows, you agree not to enforce any "moral rights" in your content against FAM, such as the right to be named as its author, when we use it as these Terms allow.
- **Feedback.** If you send us ideas, suggestions or bug reports, we may use them freely, without paying you and without keeping them confidential.

We don't check everything before it appears, and we have no duty to, but we may review, limit, hide or remove any content, including content that is reported, at any time.

8. What belongs to FAM

FAM and everything in it, other than your content and other people's, belongs to Familiarize or the people who license it to us. That includes the apps, website, software, designs, the FAM name and logo, and episodes: their scripts, titles, summaries, audio, captions and pictures. Because episodes are shared between listeners, you do not own an episode by having asked for it.

As long as you follow these Terms, we give you a personal, revocable, non-exclusive, non-transferable permission to use FAM and to listen to episodes for your own non-commercial use, and to share them using FAM's own features. Episodes are licensed to you, not sold. You may not use the FAM name, logo or look in a way that suggests we endorse or are connected with you without our written permission. We keep all rights we don't expressly give you.

9. Community rules

Zero tolerance

There is no place on FAM for objectionable content or abusive people. You agree not to post, send, caption, attach or search for anything that:

- harasses, bullies, threatens, intimidates or stalks anyone, or encourages others to;
- attacks people for who they are, including race, ethnicity, national origin, caste, religion, disability, age, serious illness, sex, gender identity or sexual orientation;
- is sexually explicit, or involves a minor in any way that is sexual, exploitative or harmful (we report child sexual abuse material to the authorities);
- promotes, glorifies or threatens violence, terrorism, violent extremism, self-harm, suicide or eating disorders;
- sells, promotes or helps people get weapons, drugs or other illegal or tightly regulated goods or services;
- is spam, a scam, a pyramid scheme, phishing or malware;
- impersonates a person, organisation or FAM itself, or misleads people about who you are or who you are connected with;
- shares someone's private or confidential information, or intimate images, without their permission;
- uses someone's name, image or voice to make it look as if they said or did something they didn't;
- is deliberately false and likely to cause harm, such as false claims about how, when or where to vote, or false emergency or public health information;
- infringes anyone's copyright, trademark, privacy, publicity or other rights; or
- is otherwise illegal, or encourages anyone to break the law.

Swearing is allowed; FAM marks episodes that contain it with an E. Slurs are removed automatically.

10. Using FAM fairly

To keep FAM working for everyone, you agree not to, or to try to, or to help anyone else to:

- use robots, scrapers, scripts or other automated means to access FAM, create accounts, or collect episodes, audio, captions, profiles or any other data, except with our written permission;
- copy, download, record, re-host, sell, license, rent or distribute episodes or other parts of FAM, except through FAM's own features;
- play episodes in public or to an audience (for example broadcast them, put them on a podcast, a radio station or a business's speakers) or use FAM for any commercial purpose without our written permission;

- use episodes, audio or anything else from FAM to train, test or improve an AI model, or to build a product that competes with FAM;
- reverse engineer, decompile or take apart FAM's apps, servers, models or systems, or try to discover their source code, except where the law allows it despite this restriction;
- get around or interfere with FAM's limits, plans, waitlist, safety checks, consent questions, content filters, Private search, blocks or security, or use other accounts to escape a limit, a block or an action we took against you;
- try to make the AI produce something these Terms forbid, or to reveal its instructions, by hiding instructions in a question, an attachment or a linked page;
- fake engagement, such as plays, likes, vibes, saves, follows, comments, searches or invitations, including by paying or rewarding people for it or using fake accounts;
- misuse Report, appeals or support, for example with false or repeated reports made to harass someone;
- send unsolicited advertising, promotions or bulk messages;
- overload, disrupt or damage FAM, probe or test its security without our permission, or upload viruses or other harmful code;
- access FAM through anything other than its apps, its website and any interfaces we publish for that purpose; or
- use FAM for emergencies, or for anything where an error could lead to death, injury or serious damage.

If you find a security problem, please tell us privately at ian@familiarize.net rather than testing it further. We won't take action against you for a report made in good faith.

11. Reporting, blocking and enforcement

Every comment, message, vibe, profile and episode has a **Report** option in its menu. Reported content disappears for you straight away, and a person reviews every report within 24 hours. When a report is upheld we remove the content, and we suspend the account that posted it. The person you report is never told who reported them.

You can **block** anyone from their profile or a conversation. Neither of you will see the other's comments, messages, vibes, profile or searches, and neither can message or follow the other. They aren't told. You can unblock people in Settings.

We also use automated checks: profile pictures and mix covers are checked before other people see them, and slurs are removed from names and messages. Automated checks make mistakes in both directions; Report covers what they miss.

If you break these Terms, or we reasonably believe you have, we may remove or hide your content, limit features, suspend your account, or close it, depending on how serious and how repeated it is. We may also act where the law requires it, or to protect people, FAM or the public. We'll tell you what we did and why, unless doing so would break the law, compromise an investigation or the safety of the Service, or put someone at risk. We may share information with law enforcement when the law requires it or when someone is in danger. If you think we got it wrong, email ian@familiarize.net and a person will look again.

12. Messages, sharing and other people

- **Who sees what.** Comments can be read by anyone. Messages and group chats are for the people in them, though a person may review a message that is reported. Mixes are public when you make them, and you can make them private. Your profile, vibes and public mixes can be seen by other listeners.
- **Sharing is copying.** Once you share something, other people may see it, save it or share it again, and we can't take back what has left FAM. Think before you share.
- **Share links.** A share link plays one episode for anyone who has it, with or without an account. Story cards you share are image files; what happens to them on another app is up to that app.
- **Your social accounts.** FAM never posts to your other social accounts and never holds a token for them.
- **Other people are not us.** We don't control what other listeners do or say, on FAM or off it, and we aren't responsible for it, though we act on every report.

13. Copyright and other rights

We respect the rights of creators and publishers, and expect you to. If you believe something on FAM infringes your copyright, email a notice to ian@familiarize.net that includes:

- your physical or electronic signature;
- the work you say is infringed;
- where on FAM the material is, in enough detail for us to find it (a share link is ideal);
- your name, address, telephone number and email address;
- a statement that you believe in good faith the use is not authorised by the owner, its agent or the law; and
- a statement, under penalty of perjury, that your notice is accurate and that you are the owner or authorised to act for them.

We remove or disable material when we receive a valid notice. If your content was removed and you believe that was a mistake, you can send a counter-notice to the same address with your signature, the material and where it was, a statement under penalty of perjury that you believe in good faith it was removed by mistake, and your name, address and telephone number with your consent to the jurisdiction of the federal court for your district (or, outside the US, any court where FAM may be found). We close the accounts of repeat infringers. For other rights, such as trademarks, privacy or publicity, use Report or email us.

Episodes are written from public sources, and FAM tells you which ones. If you publish one of those sources and want to talk to us about how FAM uses it, email us.

14. Sources and other companies

FAM depends on other companies to work, including its AI provider, search providers, live data services, voice and hosting providers, and sign-in, email and notification services. The privacy policy names them. The sources an episode links to, and any website, app or service you reach from FAM (such as signing in with Google or Apple), are run by other people under their own terms and policies. We don't control them and aren't responsible for them, their content, their availability or what they do with your information. A link is not an endorsement.

FAM shows no advertising today. If that changes, we'll update these Terms first. An episode may mention products, companies or services because they are part of the story; no one pays FAM to be in an episode.

15. Plans, limits and payments

- **Limits.** Each plan, including the free one, allows a certain number of episodes in a period. An episode counts whether it is newly written or already kept. We may change the limits of the free plan at any time, and those of a paid plan as described below.
- **Paid plans.** If you buy a paid plan, you'll see the price, billing period and what it includes before you pay. Unless it says otherwise, a plan renews automatically and is charged at the start of each period until you cancel. You authorise us, or the app store you buy through, to charge your payment method. You are responsible for any taxes.
- **Cancelling.** You can cancel at any time; the plan stays active until the end of the period you paid for. If you bought through the App Store or Google Play, cancel and ask for refunds there, under their rules.
- **Refunds.** Payments are non-refundable except where the law requires otherwise or these Terms say so. If we stop offering a paid plan before the end of a period you prepaid,

we'll refund the unused part.

- **Price changes.** We'll tell you at least 30 days before a price increase takes effect, and it applies from your next renewal, so you can cancel first.
- **Trials and offers.** Free trials, codes and promotions have their own conditions, shown when they're offered, and have no cash value. Unless you cancel before a trial ends, it may become a paid plan.
- **Failed payments.** If a payment fails, we may move you to the free plan or pause paid features until it succeeds.

16. Notifications and messages from us

You agree that we may send you notices, agreements, disclosures and other messages about your account and these Terms electronically: in the app, by email or by push notification. They satisfy any legal requirement that they be in writing. Push notifications are off until you turn them on, and you can turn them off at any time in your device's settings.

17. The app and its software

- We give you a personal, non-exclusive, non-transferable, revocable licence to use FAM's apps and software to use the Service as these Terms allow.
- The app may update itself, and you agree to receive updates. An old version may stop working; when it does, the app will ask you to update.
- FAM uses your device's processor, storage and network to work, including to keep finished episodes so they play without a connection. Your carrier's data charges may apply.
- Some of FAM's software is open source and covered by its own licence, which wins where it conflicts with these Terms.

18. Ending this agreement

You can stop using FAM at any time, and delete your account in Settings. Deleting it erases your account and what FAM keeps about you straight away, as the privacy policy describes; episodes you searched stay for other listeners without your name. Agreeing to these Terms is part of having an account: if you no longer agree, delete your account.

We may suspend or close your account, or stop providing all or part of the Service to you, if you break these Terms (seriously or repeatedly), if the law requires it, if your use creates risk or

legal exposure for FAM or harm to anyone, or if we stop offering the Service. We'll tell you why, with the exceptions in section 11. If we close the Service altogether, we'll give you reasonable notice and refund any prepaid, unused paid plan.

If your account is closed, you may still be able to listen without one, and these Terms still apply to that. Sections 7 (for content already shared), 8, 13, and 18 to 25 continue after this agreement ends, along with anything else that by its nature should.

19. No warranty

FAM IS PROVIDED **"AS IS"** AND **"AS AVAILABLE"**. TO THE FULLEST EXTENT THE LAW ALLOWS, FAMILIARIZE, ITS AFFILIATES, LICENSORS AND SUPPLIERS MAKE NO WARRANTIES OR PROMISES OF ANY KIND, EXPRESS, IMPLIED OR STATUTORY, AND DISCLAIM ALL WARRANTIES, INCLUDING OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, ACCURACY AND NON-INFRINGEMENT, AND ANY ARISING FROM A COURSE OF DEALING OR USAGE OF TRADE. WE DO NOT PROMISE THAT FAM OR ANY EPISODE WILL BE ACCURATE, COMPLETE, CURRENT, UNINTERRUPTED, SECURE, FREE OF ERRORS OR HARMFUL COMPONENTS, OR ABLE TO MEET YOUR NEEDS, OR THAT ANY CONTENT WILL BE KEPT OR NOT LOST. YOU USE EPISODES AT YOUR OWN RISK AND WILL NOT RELY ON THEM AS YOUR ONLY SOURCE OF FACTS OR AS A SUBSTITUTE FOR PROFESSIONAL ADVICE. NOTHING WE TELL YOU CREATES A WARRANTY NOT STATED HERE.

20. Limits on our liability

TO THE FULLEST EXTENT THE LAW ALLOWS, FAMILIARIZE AND ITS AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, LICENSORS AND SUPPLIERS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, GOODWILL, DATA OR USE, ARISING FROM OR RELATING TO THESE TERMS OR FAM, INCLUDING FROM: ERRORS OR INACCURACIES IN AN EPISODE OR ANY CONTENT; ANY DECISION YOU MAKE BASED ON AN EPISODE; THE CONDUCT OR CONTENT OF OTHER PEOPLE OR THIRD-PARTY SERVICES; UNAUTHORISED ACCESS TO YOUR ACCOUNT OR DATA; ANY INTERRUPTION OR END OF THE SERVICE; OR THE REMOVAL OR LOSS OF ANY CONTENT, WHATEVER THE LEGAL THEORY AND EVEN IF WE WERE TOLD THEY WERE POSSIBLE. OUR TOTAL LIABILITY FOR ALL CLAIMS ABOUT FAM OR THESE TERMS IS LIMITED TO THE GREATER OF WHAT YOU PAID US IN THE TWELVE MONTHS BEFORE THE CLAIM AROSE, OR US$100.

These limits apply even if a remedy fails of its essential purpose. They do not limit liability for fraud, for death or personal injury caused by negligence, or anything else the law says cannot be limited. Some places don't allow some of these limits or the disclaimers in section 19; where they don't, they apply only as far as the law allows, and you may have additional rights.

21. Covering us for your actions

To the extent the law allows, you agree to defend, indemnify and hold harmless Familiarize and its affiliates, officers, directors, employees and agents from any claims, damages, losses, liabilities, costs and expenses (including reasonable lawyers' fees) brought by someone else and arising from your content, what you ask or attach, your use of FAM, your breaking these Terms, or your violating the law or anyone's rights. We may take over the defence of such a claim, in which case you will cooperate with us, and you won't settle one without our written agreement. This does not apply to consumers in places where the law does not allow it.

22. Disputes and arbitration

This section does not apply if you live in the European Economic Area, the United Kingdom or Switzerland; there, you may bring a claim in the courts where you live, and your local consumer laws apply.

Talk to us first

Most problems can be fixed quickly. Before either of us starts an arbitration or a court case, we agree to try to resolve the dispute informally for 60 days. You start by emailing ian@familiarize.net with your name, the email or phone number on your account, a description of the dispute and what you want. We'll start by emailing the address on your account. Either of us may ask for a call to settle it. Time limits for bringing a claim are paused during these 60 days.

Binding individual arbitration

If we can't resolve it, you and FAM agree that any dispute, claim or controversy arising from or relating to these Terms or FAM, whenever it arose (a "Dispute"), will be resolved by final and binding arbitration on an individual basis, administered by National Arbitration and Mediation ("NAM") under its Comprehensive Dispute Resolution Rules and Procedures and, where they apply, its Supplemental Rules for Mass Arbitration Filings. The Federal Arbitration Act governs this section. A single arbitrator will decide the Dispute, by videoconference where possible, or otherwise in the county where you live or another place we agree. The arbitrator may award the same individual relief a court could. A court, not the arbitrator, decides whether this section is valid, enforceable and applies to a Dispute.

If you start an arbitration seeking less than US$10,000, FAM will pay the filing, administration and arbitrator fees, unless the arbitrator finds your claim frivolous. Otherwise fees follow

NAM's rules. FAM will not seek its lawyers' fees from you unless the arbitrator finds your claim frivolous.

Exceptions

Either of us may instead bring an individual claim in small claims court if it qualifies, and either of us may go to court to stop infringement or misuse of intellectual property, or to stop unauthorised access to or abuse of the Service (for example scraping). Nothing here stops you from bringing an issue to a government agency.

No class actions and no jury

YOU AND FAM MAY BRING CLAIMS AGAINST EACH OTHER ONLY INDIVIDUALLY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS, COLLECTIVE, CONSOLIDATED OR REPRESENTATIVE PROCEEDING. YOU AND FAM BOTH WAIVE ANY RIGHT TO A JURY TRIAL.

The arbitrator may grant relief only to the individual asking for it. A request for public injunctive relief will be decided by a court after the rest of the Dispute is arbitrated. Either of us may still take part in a class-wide settlement.

Many claims at once

If 25 or more people represented by the same or coordinated lawyers bring similar claims within 90 days of each other, NAM will administer them in batches of up to 50 claimants, each batch as one arbitration with one arbitrator and one set of fees, unless we agree otherwise. Time limits are paused for claims waiting for their batch.

Opting out

You may opt out of this arbitration agreement by emailing ian@familiarize.net within 30 days of first agreeing to these Terms, from the address on your account, with your name, your @handle and a clear statement that you want to opt out of arbitration. If we change this section in a way that matters, you can reject the change the same way within 30 days of being told; the version you agreed to before will still apply.

If part of this fails

If a court finds part of this section unenforceable, the rest still applies, except that if the class action waiver is found unenforceable for a claim, that claim goes to court rather than to a class arbitration.

Governing law, courts and time limits

These Terms and any Dispute are governed by the laws of the State of Delaware and applicable US federal law, without regard to conflict-of-law rules. Any Dispute that is not arbitrated will be brought only in the state or federal courts in Delaware, and you and FAM agree to their jurisdiction. To the extent the law allows, a claim must be started within one year after it arises, or it is permanently barred.

23. Apple, Google and app stores

If you use FAM on an iPhone or iPad, these Terms are between you and Familiarize, not Apple. Apple is not responsible for FAM or its content, has no obligation to provide maintenance or support for it, and is not responsible for any claim about it, including product liability, legal or regulatory claims, consumer protection claims, or claims that it infringes someone else's rights; we are responsible for investigating, defending and settling any such claim. If the app fails to meet a warranty that applies, you may tell Apple and Apple will refund what you paid for it, if anything; Apple has no other warranty obligation. Apple and its subsidiaries are third-party beneficiaries of these Terms and may enforce them against you. You must also follow the App Store's own terms.

If you get FAM from Google Play or another app store, that store's terms also apply, and these Terms are between you and FAM, not the store.

24. Changes to these Terms

We may change these Terms to reflect changes in FAM, in how we work, or in the law, or for safety and security. When a change matters, we'll tell you in the app or by email and the app will ask you to agree again before you go on. We'll give you at least 30 days' notice of a change that materially reduces your rights, unless we need to act sooner for legal, safety or security reasons. Other changes take effect when we post them. The date at the top shows when these Terms last changed. If you don't agree to new Terms, stop using FAM and delete your account.

25. General terms

- **Privacy.** The privacy policy explains how we collect and use information, and you agree to it when you agree to these Terms.
- **Entire agreement.** These Terms, together with the privacy policy and any terms shown to you for a particular feature or plan, are the whole agreement between you and FAM

about the Service, and replace any earlier ones. Where feature terms conflict with these, the feature terms win for that feature.

- **Sanctions and export.** You confirm you are not in a country or region under US embargo, are not on a US government list of prohibited or restricted parties, and will not use or export FAM in breach of sanctions or export laws.
- **Transfer.** You may not transfer your rights or obligations under these Terms. We may transfer ours, for example if FAM is sold or merged, and these Terms will continue to apply.
- **Severability.** If any part of these Terms can't be enforced, the rest stays in effect, and that part is enforced as far as the law allows.
- **No waiver.** If we don't enforce part of these Terms straight away, we haven't given up the right to enforce it later.
- **Things beyond our control.** We aren't responsible for failures or delays caused by events outside our reasonable control, such as outages of the companies FAM relies on, network failures, disasters or government action.
- **Relationship.** Nothing in these Terms makes you and FAM partners, employees or agents of each other. Apart from section 23, nobody else has rights under these Terms.
- **Interpretation.** "Including" means "including but not limited to", and headings and the short version are for convenience. If these Terms are translated, the English version wins.
- **Your rights under the law.** You may have rights as a consumer that no contract can take away. Nothing in these Terms is meant to limit them.
- **California users.** Under California Civil Code section 1789.3, you may contact the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs in writing at 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or by telephone at (800) 952-5210.

26. Contact

Email ian@familiarize.net. A person reads every message, and we answer within 24 hours.